

LOPEZ v. ROSE

23CF14110

PLAINTIFF'S APPLICATION FOR WRIT OF POSSESSION

This is a civil action for conversion of personal property between former romantic partners and cohabitators. Before the Court is plaintiff's application for a writ of possession for his French bulldog. There is a related action between the parties (22DV46201).

Pursuant to Code of Civil Procedure §§ 512.060 and 515.010, a writ of possession "shall" issue if (1) the plaintiff has established the probable validity of its claim to possession of tangible property and (2) the plaintiff has provided an undertaking of not less than twice the value of defendant's interest, if any, in the property. To establish *probable validity*, plaintiff must show that it is "more likely than not" that the plaintiff will obtain a judgment against the defendant on the possession claim. (See *People v. Superior Court* (2002) 27 Cal.4th 888, 919.) To meet this standard, the plaintiff must show (1) that it is entitled to immediate possession of the property and (2) that defendant's continued possession is wrongful. (CCP §512.010(b)(1)-(2); see *Cassel v. Kolb* (1999) 72 Cal.App.4th 568, 575-576.) In addition, if the property is held at a private place, plaintiff must also establish probable cause to believe that the property is in fact located at the private place. (CCP §512.010(b)(4).)

Although plaintiff makes a compelling showing that the dog belongs to plaintiff and that defendant's continued possession is unlawful, that is not the end of the analysis. On 08/02/22, this Court issued a Temporary Restraining Order in 22DV46201 against plaintiff, obligating him to move out of the home at 5393 Spur Road, Angels Camp, to have no contact with defendant, and to stay 150 yards away from the subject dog, as this Court gave defendant sole possession, care and custody of the dog. The order was issued ex parte, without hearing plaintiff's side. Although plaintiff filed a response in that case explaining why he contended the dog belonged to him, that issue has yet to be adjudicated at an evidentiary hearing (currently scheduled for 5/31/23), resulting in repeated orders extending the TRO. Additionally, in another related case (22CH46222), plaintiff's mother secured a temporary civil harassment restraining order against defendant, prohibiting defendant from coming within 150 yards of the same residence, and further to stay away from *Janice's* French Bulldog ... another dog that the Court in 22DV46201 gave to defendant (as opposed to plaintiff).

Both 22DV46201 and 22CH46222 are set for an evidentiary hearing on 05/31/23. It seems to this Court that the most orderly method for resolving plaintiff's claimed possessory interest in the dog is to address the matter in the trial of those cases,